Of Counsel:
DEELEY KING PANG & VAN ETTEN
A LIMITED LIABILITY LAW PARTNERSHIP

GLENN S. HORIO 8151
YUN W. KIM 11522
Pauahi Tower
1003 Bishop Street, Suite 1550
Honolulu, Hawai‘i 96813
Telephone: (808) 533-1751
Facsimile: (808) 599-2908
E-Mail: gh@dkpvlaw.com; yk@dkpvlaw.com

Attorneys for Plaintiff
ASSOCIATION OF APARTMENT OWNERS OF
MARINE SURF WAIKIKI, INC.

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IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAI‘I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors,

Plaintiff and Counterclaim Defendant,

vs.

NIKODEM PIKOR,

Defendant and Counterclaim Plaintiff.

NIKODEM PIKOR,

Defendant and Third Party Plaintiff,

vs.

THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation,

Third-Party Defendant.

CIVIL NO. 1RC19-1-003776

PLAINTIFF ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC.’S MEMORANDUM IN OPPOSITION TO DEFENDANT/ COUNTERCLAIM PLAINTIFF NIKODEM PIKOR’S MOTION FOR RECONSIDERATION OF ORDER GRANTING IN PART AND DENYING IN PART MOTION FOR ATTORNEYS’ FEES AND COSTS [DKT. 423] FILED AUGUST 19, 2026 [DKT. 431]; CERTIFICATE OF SERVICE

Judge: The Honorable Summer Kupau-Odo
Trial: May 12, 2022
October 26-27, 2022
January 11-12, 2023
April 5, 2023

Hearing:
Date: September 24, 2026
Time: 1:30 P.M.
Judge: Presiding

I do hereby certify that the foregoing is a full, true and correct copy of the official court record of the Courts of the State of Hawai`i.
Dated at: Honolulu, Hawai`i 22-SEP-2026, /s/ Lori Ann Okita, Clerk of the First Judicial Circuit, State of Hawai`i

PLAINTIFF ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC.'S MEMORANDUM IN OPPOSITION TO DEFENDANT/COUNTERCLAIM PLAINTIFF NIKODEM PIKOR'S MOTION FOR RECONSIDERATION OF ORDER GRANTING IN PART AND DENYING IN PART MOTION FOR ATTORNEYS' FEES AND COSTS [DKT. 423] FILED AUGUST 19, 2026 [DKT. 431]

I. INTRODUCTION

Comes now Plaintiff ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors ("Plaintiff" or "Association"), by and through its counsel, Deeley King Pang & Van Etten LLLP, hereby files it Memorandum in Opposition ("MIO") to Defendant/Counterclaim Plaintiff Nikodem Pikor's ("Pikor") Motion for Reconsideration of Order Granting in Part and Denying in Part Motion for Attorneys' Fees and Costs [Dkt. 423] filed on August 19, 2026 [Dkt. 431] ("Motion"). The Association incorporates by reference the Memorandum in Opposition filed on behalf of Counterclaim Defendant ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS ("Counterclaim Defendant Association") against the Motion, which was previously filed August 31, 2026 [Dkt. 451] and any further opposition to Pikor's Motion that may be filed by Counterclaim Defendant Association. The Association provides the following key points below for the Court's consideration.

II. PROCEDURAL BACKGROUND

Prior to the entry of a judgment in this case, the Association filed its Motion for Attorneys' Fees and Costs on June 27, 2024 [Dkt. 398] ("AFC Motion"). On June 15, 2026, this Court entered the Order Granting in Part and Denying in Part Plaintiff and Counterclaim Defendant Association of Apartment Owners of Marine Surf Waikiki, Inc.'s Motion for Attorneys' Fees and Costs [Dkt. 423] ("AFC Order"). The Judgment and Notice of Entry of Judgment in this proceeding were both entered by the Court on June 23, 2026. Dkts. 427, 429.

III. ARGUMENTS

Pikor's Motion does not address the merits of the AFC Motion but focuses solely on what he incorrectly alleges is a procedural defect that impacts the validity of the AFC Order. Pikor argues that under the Hawai'i Rules of Appellate Procedure ("HRAP") Rule 4(a)(3), the Court was required to determine the [AFC Motion] within 90 days. This is untrue. The relevant portion of HRAP Rule 4 states:

> (3) TIME TO APPEAL AFFECTED BY **POSTJUDGMENT MOTIONS**. If any party files a timely motion for judgment as a matter of law, to amend findings or make additional findings, for a new trial, to reconsider, alter or amend the judgment or order, or for attorney's fees or costs, and court or agency rules specify the time by which the motion shall be filed, then the time for filing the notice of appeal is extended for all parties until 30 days after entry of an order disposing of the motion. The presiding court or agency in which the motion was filed shall dispose of any **such post-judgment motion** by entering an order upon the record within 90 days after the date the motion was filed. If the court or agency fails to enter an order on the record, then, within 5 days after the 90th day, the clerk of the relevant court or agency shall notify the parties that, by operation of this Rule, the **post-judgment motion** is denied and that any orders entered thereafter shall be a nullity. The time of appeal shall run from the date of entry of the court or agency's order disposing of the **post-judgment motion**, if the order is entered within the 90 days, or from the filing date of the clerk's notice to the parties that the post-judgment motion is denied pursuant to the operation of the Rule.
>
> The notice of appeal shall be deemed to appeal the disposition of all post-judgment motions that are timely filed after entry of the judgment or order.
>
> The 90-day period shall be computed as provided in Rule 26 of these Rules.

HRAP Rule 4(a)(3) (emphasis added). Pikor's Motion should be denied because the 90-day time limit cited by him only applies to post-judgment motions under HRAP Rule 4(a)(3). As noted above, the AFC Motion and AFC Order were both filed and entered before any judgment was entered in this case. The AFC Motion was a **pre-judgment motion** and thus the requirements under HRAP Rule 4(a)(3) do not apply to the disposition of the AFC Motion and the subsequent AFC Order. This alone requires the denial of Pikor's Motion in its entirety because the condition and assumption of his Motion is completely reliant upon the applicability of HRAP Rule 4(a)(3), which clearly does not apply in this circumstance based upon plain language of the rule. The AFC Order is not void, is not a "legal nullity," and thus the Motion should be denied.

IV. CONCLUSION

For the reasons stated above, the Association respectfully requests that this Court deny Pikor's Motion in its entirety.

DATED: Honolulu, Hawai'i, September 21, 2026.

/s/Glenn S. Horio
GLENN S. HORIO
YUN W. KIM
Attorneys for Plaintiff
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Director

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAI'I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiff and Counterclaim Defendant, vs. NIKODEM PIKOR, Defendant and Counterclaim Plaintiff.	CIVIL NO. 1RC19-1-003776 **CERTIFICATE OF SERVICE**
NIKODEM PIKOR, Defendant and Third Party Plaintiff, vs. THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation, Third-Party Defendant.	

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing document will be duly served electronically through JEFS to the following parties by ECF, on the following date:

TERRANCE M. REVERE, ESQ. (***terry@revereandassociates.com***)
AMANDA L. DUTCHER, ESQ. (***amanda@revereandassociates.com***)
Revere & Associates
Pali Palms Plaza
970 North Kalaheo Street, Suite A301
Kailua, HI 96734
Attorneys for Defendant/Counterclaim Plaintiff
NIKODEM PIKOR

JAMES R. FERGUSON, ESQ. (***jferguson@rlhlaw.com***)
JODIE D. ROECA, ESQ. (***jroeca@rlhlaw.com***)
Roeca Luria Shin LLP
American Savings Bank Tower
1001 Bishop Street, Suite 2250
Honolulu, HI 96813
Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS

CALVERT G. CHIPCHASE, IV, ESQ. (***cchipchase@cades.com***)
JARRETT A. DEMPSEY, ESQ. (***jdempsey@cades.com***)
Cades Schutte LLP
Cades Schutte Bldg.
1000 Bishop St., Fl. 12
Honolulu, HI 96813
Attorneys for Third-Party Defendant
THYSSENKRUPP ELEVATOR CORPORATION

DATED: Honolulu, Hawai‘i, September 21, 2026.

/s/ Glenn S. Horio
GLENN S. HORIO
YUN W. KIM
Attorneys for Plaintiff
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors